

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MARTHA ALEJANDRA BAYARDO,

Petitioner

VS.

CARLOS GERARDO BAYARDO,

Respondent

) Case Number: FDI-24-799607

) Hearing Date: August 27, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER CHILD CUSTODY, VISITATION, SUPPORT, BIFURCATION AND
TERMINATION OF STATUS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Martha Bayardo (Mother) and Respondent Carlos Bayardo (Father) married on
6/6/2012 and separated on 6/7/2018, for a marriage of 6 years. The parties have one minor child,
Roberta (DOB: 12/2/2013, age 12). Mother is represented in limited scope by attorney Hector
Chinchilla. Father is self-represented.
- 2) On 2/3/2026, Mother filed the instant Request for Order asking the Court to award her sole legal
and physical custody, award Mother guideline child support, issue Mother's proposed holiday
schedule, and bifurcate and terminate the parties' marital status.
- 3) On 2/20/2026, the parties appeared for a Mandatory Settlement Conference and reached several
agreements.
- 4) On 4/7/2026, the parties appeared for a hearing on Mother's 2/3/2026 Request for Order. The
Court ordered the parties to attend mediation and set the matter for a continued hearing on
6/4/2026.

- 1 5) On 4/24/2026, a Judgment was entered which incorporates the parties' Marital Settlement
2 Agreement (MSA). The MSA provides in relevant part that legal and primary physical custody
3 shall be granted to Mother with a visitation schedule for Father. The MSA also provides, "As
4 regards child support, the parties have since separation, addressed this issue through an informal
5 private agreement. Unless and until a further order from the court the parties have agreed to
6 maintain the status quo." The MSA also terminates the Court's jurisdiction to award spousal
7 support to either party.
- 8 6) On 5/11/2026, a Child Custody and Visitation Stipulation and Order was entered which states that
9 Mother shall have sole legal custody and the parties shall share joint physical custody. The
10 Stipulation and Order outlines a regular and holiday visitation schedule.
- 11 7) On 5/26/2026, Mother filed an Income and Expense Declaration. Mother states she is 54 years
12 old and has a Masters Degree in Marketing. Mother works 40 hours per week for her pet care
13 business. Mother attached a 2025 Profit and Loss Statement which shows that she earned \$88,947
14 in gross income in 2025 and paid \$48,904 in expenses (not including depreciation), for net self-
15 employment income of \$40,043, which averages out to \$3,337 per month. Mother estimates that
16 Father earns \$8,000 per month.
- 17 8) On 6/1/2026, Mother filed a declaration to which a proposed XSpouse calculation is attached,
18 which shows \$630 per month in guideline child support payable by Father based on Father's
19 earning \$6,500 per month in self-employment income and Mother earning \$1,750 per month in
20 self-employment income.
- 21 9) Per the Proof of Service filed 6/1/2026, Mother's Income and Expense Declaration and her
22 declaration filed 6/1/2026 were mailed and emailed to Father on 5/27/2026.
- 23 10) Father did not file any responsive pleadings prior to the 6/4/2026 hearing.
- 24 11) At the 6/4/2026 hearing, the Court made the following findings and orders:
 - 25 a. The Court does not have sufficient information to make a guideline child support
26 calculation given that Mother's most recent pleadings provide two different income
27 figures for Father (with no documentary support) and there is no current Income and
28 Expense Declaration on file for Father.
 - 29 b. The hearing on Mother's request for child support is continued to 8/27/2026.

1 c. At least 20 calendar days prior to the next hearing date, Father shall file and serve a fully
2 completed Income and Expense Declaration. Father shall include as an attachment
3 paystubs for the immediately preceding two months, a year-to-date Profit and Loss
4 Statement or Schedule C, and a Profit and Loss Statement or Schedule C for 2025.

5 d. If Father fails to file an Income and Expense Declaration prior to the next hearing date, at
6 least 10 calendar days prior to the next hearing date, Mother shall file a declaration to
7 which she attaches documentary proof of her claims regarding Father's income.

8 12) On 8/14/2026, Father filed an Income and Expense Declaration. Father states that he earns on
9 average \$812 per month in dividends and interest, \$6,000 per month in wages, and \$6,000 per
10 month in average self-employment income as a dog walker. Father states that he has \$250,000 in
11 cash savings and \$4,000 in easily saleable investments. Father estimates his monthly expenses to
12 be \$7,360. Father reports no debts. Father attached a 2025 Schedule C which shows that he
13 earned \$77,023 in gross income in 2025 and paid \$33,107 in expenses, for net self-employment
14 income of \$43,916, which averages out to \$3,670 per month.

15 **B. Findings and Order**

16 1) The Court has been provided with several different income figures for Father. Mother has stated
17 that she believes Father earns either \$8,000 per month or \$6,500 per month. Father states he earns
18 \$6,000 per month in wages in addition to \$6,000 per month in net self-employment income as a
19 dog walker. However, the 2025 tax return attached to Father's 8/14/2026 Income and Expense
20 Declaration does not show that Father earns any W2 income. It instead shows that in 2025 Father
21 only earned net self-employment income of \$43,916, or approximately \$3,670 per month. The
22 Court will use \$3,670 per month in net self-employment income for Father in the XSpouse
23 calculation, together with the \$812 per month in dividends and interest income reported by
24 Father.

25 2) In accordance with the Xspouse calculation attached hereto and incorporated by reference,
26 effective 2/3/2026 (the date Mother filed her Request for Order), Father shall pay Mother \$214
27 per month in child support. Commencing 9/1/2026, this amount shall be paid to Mother by the
28 15th of each month.

- 1 3) Father owes Mother \$191 in child support arrears for the period 2/3/2026–2/28/2026 and \$1,284
2 for the period 3/1/2026–8/31/2026, for total child support arrears due of \$1,475. Father shall pay
3 this amount to Mother no later than 9/30/2026.
- 4 4) Mother’s attorney shall prepare the Findings and Order After Hearing.
- 5 5) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
6 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
7 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
8 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
9 proposed order after hearing directly to the court. Failure to submit the order after hearing within
10 10 days may allow the other party to prepare a proposed order and submit it to the court in
11 accordance with CA Rules of Court, Rule 5.125(d).
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Fixed Shares	Father	Mother	Monthly figures	Cash Flow			
#of children	0	1	2026		Guideline	Proposed	
% time with NCP	45.00 %	0.00 %		Comb. net spendable	6768	6797	
Filing status	SINGLE	HH/MLA	GUIDELINE	Percent change	0%	0%	
# exemptions	1 *	2 *	Nets(adjusted)	Father			
Wages+salary	0	0	Father	3637	Payment cost/benefit	-214	-116
Self-employed income	3607	3337	Mother	3131	Net spendable income	3423	3520
Other taxable income	812	0	Total	6768	Change from guideline	0	98
TANF+CS received	0	0	Support		% of combined spendable	51%	52%
Other nontaxble income	0	0	Addons	0	% of saving over guideline	0%	344%
New spouse income	0	0	Guideln CS	214	Total taxes	782	570
401(k) employee contrib	0	0	S.Clara SS	0	Dep. exemption value	0	0
Adjustments to income	0	0	Total	214	# withholding allowances	0w	0w
SS paid prev marriage	0	0	-		Net wage paycheck	0	0
CS paid prev marriage	0	0			Mother		
Health insurance	0	0			Payment cost/benefit	214	145
Other medical expense	0	0			Net spendable income	3346	3276
Property tax expense	0	0			Change from guideline	0	-69
Ded interest expense	0	0	Proposed		% of combined spendable	49%	48%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	-244%
Misc tax deductions	0	0	CS	286	Total taxes	206	389
Qual bus income ded	0	0	SS	42	Dep. exemption value	0	0
Required union dues	0	0	Total	328	# withholding allowances	0w	0w
Mandatory retirement	0	0			Net wage paycheck	0	0
Hardship deduction	0 *	0 *	Saving	28			
Other GDL deductions	0	0	Releases	1			
Child care expenses	0	0	Released to Father				

Father pays Guideline CS, Proposed CS, Proposed SS

FC 4055 checking: ON

Per Child Information	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	45 - 55	0	0	0	Father	214	Father	214	Father
	45 - 55	0	0	0	Father	214	Father	214	Father